

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On July 5, 2023, a complaint was filed with the Spanish Agency for Data Protection against BUFETE LÓPEZ CASTRO, S.L. with NIF B74110115 (hereinafter, the respondent).

The reasons for the complaint are as follows:

The complainant states that on July 5, 2023, a Simple Note issued by the Property Registry of ***LOCALITY.1, which includes their personal data (name, surname, and ID number), was published in the WhatsApp group of their Community of Owners from the phone number ***PHONE.1.

They provide a screenshot of the instant messaging application WhatsApp and a copy of the published Simple Note. The Simple Note was requested by the lawyer whose name the firm bears and who appears as the sender on WhatsApp.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) via electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on August 5, 2023, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was duly notified on August 8, 2023. In this notification, they were reminded of their obligation to interact electronically with the Administration, and they were informed of the means to access such notifications, reiterating that, henceforth, they would be notified exclusively by electronic means.

On August 14, 2023, a response was received at this Agency indicating the following:

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- That the information was shared in a closed WhatsApp group, never publicly but privately and closed.
- That WhatsApp is a communication system between specific individuals, and therefore private. Thus, the use of what is said must be restricted to that scope in principle. The size of the WhatsApp group does not detract from its private nature.
- That all owners have access to this information in community files, even in the minutes where all of them are listed by name and surname (data that is claimed to have been disclosed).
- That the purpose was perfectly lawful and legitimate, namely to address the well-known agenda item.
- That there is no data related to privacy, image, honor, or communication secrecy (simply name and surname that already appear in the community).
- That there is a legitimate interest, understanding that it is a newsworthy fact or of interest to the participants of the group and co-owners in order to decide a specific point of the call.
- That the information revealed does not affect the reputation or good name of the person nor is it of an intimate nature.
- That therefore we are talking about a true newsworthy fact, as this may allow such revelation.

THIRD: On October 4, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed was

admitted for processing.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions...

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regulatory provisions issued in its development and, insofar as they do not contradict them, with subsidiary character, by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of data protection regulations, the processing of personal data is considered lawful, in particular, when the data subject has given explicit consent for one or more specified purposes, when it is necessary for the performance of a contract to which the data subject is a party or for the implementation, at their request, of pre-contractual measures, or when it is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or fundamental rights and freedoms of the data subject requiring the protection of such data.

The Communities of property owners are responsible for the processing of personal data they carry out in accordance with the regulation contained in Law 49/1960, of July 21, on Horizontal Property (LPH). The President of the Community, as its representative, according to Article 13.3 of the LPH, and the Secretary and/or the Administrator, as custodian of the Community's documentation, according to Article 20, are authorized to process the data of the members for the purposes provided in the LPH.

Access to the personal data of the owners by third parties acting on behalf of the Community, particularly property management companies, must comply with what is stipulated in the contract that defines the terms of the mandate received. In this regard, it should be noted that this Agency is not competent to assess any possible breach of contract or disputes arising within the framework of the contractual relationship. The Agency is also not competent to assess possible discrepancies among the co-owners, particularly those related to the certainty or accuracy of the amount of a debt, or the consequences that any challenges regarding the appointment of governing bodies or the unwanted linkage of the community with other communities, associations, or conservation urban entities may have. All these issues must be raised before the competent judicial bodies or, where appropriate, before the corresponding Professional Association of Property Administrators.

Similarly, the Agency is not competent regarding possible domestic data processing that neighbors may carry out outside of the official communications of the governing body of the Community, particularly the sending of electronic messages related to possible disagreements within the community.

It should be noted that, in general, it is not necessary for property owners to consent to the use of their own personal data within the internal scope of the Community. In this regard, the First Section of the Administrative Litigation Chamber of the National Court in Judgment of 04/14/2008, issued in case 379/2006, understood that it is legitimate to provide members with information about the management

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matters that are of common interest to the Community, provided that the dissemination of personal data does not exceed the limited scope of the associative relationship inherent to the Community. In this regard, the owners could legitimately know, in particular, the contact addresses of other members of the Community.

In relation to delinquency, Articles 16.2 and 19 of the LPH authorize the inclusion of identifying data of delinquent owners in the Notices of Meeting and in their Minutes, stating: "The notice shall contain a list of the owners who are not up to date with the payment of debts owed to the community..."

The LPH also provides for the installation of "notice boards" for the purpose of enabling the notification of acts of interest to the Community when prior attempts at notification have been unsuccessful. Article 9. h) of the LPH establishes among the obligations of the owner the requirement to indicate an address for the purposes of notifications and summons. In the absence of such, the owner's apartment or premises belonging to the Community shall be considered as such. However, it adds: "If an attempt to summon or notify the owner is impossible to carry out at the designated place [...], it shall be understood to have been made by placing the corresponding communication on the community notice board, or in a visible common area designated for that purpose, with due diligence expressing the date and reasons for proceeding with this form of notification, signed by the person performing the functions of secretary of the community with the approval of the president. Notification made in this manner shall produce full legal effects within three calendar days."

The dissemination of personal data in spaces not restricted to owners, on the walls of entrances or on common notice boards, could violate data protection regulations. However, the responsibility for any potential infringement could only be determined if some means of proof were provided that allowed for the identification of who disseminated the personal data. In particular, in the event that the affected document had been placed, outside of legally provided cases, on a locked notice board whose custody was exclusively assigned to its governing bodies, it would be the Community of Owners, constituted by all its members and not just the individuals representing it, that would assume all effects of responsibility for a possible infringement of data protection regulations.

On the other hand, if the published data only included the identification of the property, but not the data of its owner, this Agency could only consider the matter if the documentation submitted along with the complaint allowed for the identification of the affected owner.

It should be noted that the right to the protection of personal data is not an absolute right, but must be considered in relation to its function in society and maintain a balance, according to the principle of proportionality, with other fundamental rights, particularly the right to effective judicial protection and to a fair trial. In this sense, the processing of personal data relating to the opposing party in a litigation is subsumed under the right of all citizens to use all relevant means of evidence for their defense, in the exercise of their legitimate rights and interests, without, in any case, leading to defenselessness, as stated in Article 24.2 of the Constitutional Text, a consideration that results.

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applicable not only to the judicial sphere but also to the administrative one. All of this is also applicable to the processing carried out by lawyers and legal representatives who perform the functions of representation and defense established in procedural legislation.

You should know, however, that the right to data protection is independent of the rights granted by Organic Law 1/1982, of May 5, on civil protection of the right to honor, personal and family privacy, and one's own image, which can be exercised by those affected not before this Agency, but before the

competent judicial authority.

Data protection regulations provide those affected with various mechanisms for resolving issues related to the processing of their personal data. If you have any doubts regarding this or wish to exercise your rights, you may, through the expressly provided contact channels, directly address the data controller. In the event that the controller has not resolved the issues raised, you may reach an amicable solution by contacting the Data Protection Officer (DPO) that the controller or processor may have designated, whose functions include supervising compliance with data protection regulations within their scope. You may also, without prejudice to actions that can be taken before the Courts of Justice, make use of mediation mechanisms, extrajudicial procedures, and other conflict resolution procedures provided to resolve disputes arising with the data controllers. Additional information, including forms for exercising your rights, can be obtained at www.aepd.es.

In this case, after analyzing the documents provided and the circumstances involved, there are no reasonable indications of the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

III

Legal assessment of the reported facts

Article 6.1 of Regulation (EU) 2016/679, of April 27, 2016, General Data Protection Regulation (GDPR), provides that processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or for the application at the request of the data subject of pre-contractual measures;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;

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e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests are not overridden by the interests or the fundamental rights and freedoms of the data subject requiring protection of personal data, particularly when the data subject is a child.

Thus, in general terms, it is not necessary for the owners to consent to the use of their own personal data and data concerning them within the internal scope of the Community, based on the aforementioned jurisprudence, and some of the processing carried out by the Community may be justified by legitimate interest, particularly those that pursue the common interest.

On the other hand, Article 5.1 (f) of the GDPR establishes that personal data shall be processed in a manner that ensures appropriate security of the data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, through the application of appropriate technical or organizational measures.

Article 5 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights, provides that data controllers and processors, as well as all persons involved in any phase of processing, shall be subject to the duty of confidentiality referred to in Article 5.1 (f) of the GDPR. This general obligation shall be complementary to the professional secrecy duties in accordance with applicable regulations. The obligations shall remain in effect even after the relationship of the obligated party with the data controller or processor has ended.

In the case under analysis, the complainant alleges that on 05/07/2023, a Simple Note issued by the Property Registry of ***LOCALIDAD.1, which includes their personal data (name, surname, and ID

number), was published in the WhatsApp group of their Community of property owners from the phone number ***TELÉFONO.1.

In this regard, the documentation provided does not indicate that the dissemination of the documentation exceeded the limited scope of the associative relationship inherent to the Community, nor that the knowledge of this circumstance is not of common interest to the owners, as it was disseminated in a WhatsApp group that only includes owners. Therefore, since sufficient evidence of the existence of data processing contrary to data protection regulations, specifically Article 6 of the GDPR, the principle of confidentiality transcribed, or that implies a disclosure of data outside the scope of the Community has not been provided.

It should be noted that Administrative Sanctioning Law, due to its specificity, applies, with some nuances but without exceptions, the guiding principles of criminal law, resulting in the clear full validity of the principle of presumption of innocence. Not in vain, Article 53.2 b) of the LPACAP.

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recognizes the right of the presumed responsible parties to "the presumption of non-existence of administrative responsibility until proven otherwise."

Well, the Constitutional Court, in Judgment 76/1990, considers that the right to the presumption of innocence entails "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely evaluated by the sanctioning body, must translate into an acquittal."

In short, the application of the principle of the presumption of innocence prevents imputing an administrative infraction when there has not been obtained and verified the existence of incriminating evidence supporting the facts that motivate this accusation.

IV

Conclusion

Therefore, based on the indications in the previous paragraphs, no evidence has been found that substantiates the existence of an infraction within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, since the reported facts have not been considered contrary to data protection regulations, in accordance with what has been stated by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to BUFETE LÓPEZ CASTRO, S.L. and to the complaining party. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may, optionally, file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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